

Syllabus.

DAIRY QUEEN, INC., v. WOOD, U. S. DISTRICT
JUDGE, ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE THIRD CIRCUIT.

No. 244. Argued February 19-20, 1962.—Decided April 30, 1962.

Claiming that petitioner had breached its contract to pay \$150,000 for the exclusive use of the trademark "DAIRY QUEEN" in certain portions of Pennsylvania, the owners of the trademark sued in a Federal District Court for (1) temporary and permanent injunctions to restrain petitioner from any future use of or dealing in the franchise and trademark, (2) an accounting to determine the exact amount of money owing by petitioner and a judgment for that amount, and (3) an injunction pending accounting to prevent petitioner from collecting any money from "Dairy Queen" stores in the territory. Petitioner filed an answer raising a number of defenses and made a timely demand for a trial by jury. The District Court struck petitioner's demand for a trial by jury, on the alternative grounds that either the action was "purely equitable" or that whatever legal issues were raised were "incidental" to equitable issues. The Court of Appeals denied petitioner's application for a writ of mandamus to compel the District Judge to vacate his order. *Held*: The District Judge erred in refusing petitioner's demand for a trial by jury of the factual issues related to the question whether there had been a breach of contract or a trademark infringement, and the Court of Appeals should have corrected that error by granting the petition for mandamus. Pp. 470-480.

(a) Where both legal and equitable issues are presented in a single case, any legal issues for which a trial by jury is timely and properly demanded must be submitted to a jury. *Beacon Theatres, Inc., v. Westover*, 359 U. S. 500. Pp. 470-473

(b) Insofar as the complaint in this case requests a money judgment, it presents a claim which is unquestionably legal. Pp. 473-477.

(c) A different conclusion is not required by the fact that the complaint is cast in terms of an "accounting" rather than in terms of an action for "debt" or "damages." Pp. 477-479.